

25STCV31719 25STCV31719

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Case Number: 25STCV31719 Hearing Date: August 13, 2026 Dept: 617

Dept.

617

Date:

8-13-26

Case

#: 25STCV31719

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, Aarchan Joshi, M.D.

RESPONDING

PARTY: Plaintiff, Stephen P. Shoemaker, Jr.

RELIEF

REQUESTED

Demurrer

to Complaint

Motion

to Strike

SUMMARY OF ACTION

On

October 31, 2025, Plaintiff Stephen P. Shoemaker, Jr. filed the instant action for breach of fiduciary duty against Defendant Aarchan Joshi, M.D. Plaintiff alleges that after Defendant performed cataract surgery on his eyes, Defendant refused to provide a scheduled follow-up examination on February 23, 2022. Plaintiff alleges that Defendant's personnel informed him that Defendant would not see him but did not provide a reason why. Plaintiff further alleges Defendant's failure to provide him with his medical records. As a result of Defendant's refusal to provide follow-up care, Plaintiff alleges that he "has suffered loss of vision, blurriness, irritation, displacement of the lens inserted during cataract surgery and pain and suffering continuously since at least February of 2022."

RULING

Demurrer: Overruled.

Defendant demurs to Plaintiff's complaint arguing that Plaintiff's breach of fiduciary duty claim is really one for medical negligence and thus barred by the Medical Injury Compensation Reform Act's (MICRA) 3-year statute of limitations. He further contends that even if the claim is not time-barred, Plaintiff's contradictory allegations fail to state a fiduciary duty or negligence claim and renders the complaint uncertain. Plaintiff opposes the demurrer, denying his claim is untimely and maintaining the sufficiency of his supporting allegations. Defendant's demurrer is overruled.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties."

(Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2 [“[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend”].)

Plaintiff’s claim is not barred by the MICRA’s 3-year statute of limitations. Defendant’s argument that the MICRA applies here rests on incorrect assumptions that a fiduciary duty must exist independently of the physician-patient relationship and that any physician action taken in connection with that relationship is “professional negligence.” [Demurrer at pp. 6-8.] A fiduciary relationship exists between doctor and patient. (Nelson v. Gaunt (1981) 125 Cal.App.3d 623, 634; Moore v. Regents of Univ. of Cal. (1990) 51 Cal.3d 120, 128-29.) Furthermore, the MICRA’s limitations period only applies to a health care provider’s “negligent act or omission.” (Code Civ. Proc., § 340.5; Unruh-Haxton v. Regents of Univ. of Cal. (2008) 162 Cal.App.4th 343, 355-56 [MICRA’s statute of limitations does not apply to intentional torts].) Construing Plaintiff’s complaint liberally, Plaintiff alleges Defendant’s intentional refusal to provide follow-up care for apparently self-interested reasons. [Compl. ¶¶ 7-9.] Plaintiff therefore does not plead a professional negligence claim, and the MICRA limitations period does not apply. Defendant’s citation to Flowers v. Torrance Memorial Hospital Medical Center for the position that “only one standard of care obtains under a particular set of facts” is unavailing as that

rule simply means that the same breach of duty cannot be measured by different standards of care in a negligence action. ((1994) 8 Cal.4th 992, 998-1000.) It has no bearing on whether a breach of fiduciary duty claim can be maintained where the alleged breach is intentional.

Plaintiff's

complaint is also not subject to demurrer due to his allegation that "continuing through at least June 18, 2025, Plaintiff was under Defendant's medical care and treatment." [Compl. ¶ 4.] Such an allegation can be disregarded as surplusage given the gravamen of Plaintiff's claim is the alleged breach of fiduciary duty caused by an intentional refusal to treat Plaintiff, as well as to provide medical records, for self-interested purposes. (See *Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 25-26.) Defendant's demurrer is thus overruled.

Motion to Strike: Granted.

Defendant

moves to strike Plaintiff's prayer for punitive damages as well as the prayer for, and separate reference, to attorney fees. It argues the claim for punitive damages must be stricken because Plaintiff's complaint is time-barred under MICRA, the punitive damages claim is barred under Code of Civil Procedure section 425.13, and the punitive damages claim is insufficiently pled.

Defendant contends that the prayer and reference to attorney fees must be stricken because the request for fees is not supported by statute or contract.

Plaintiff opposes the motion, denying that his complaint is untimely and his punitive damages claim is barred by section 425.13. Plaintiff further maintains his claim for punitive damages is sufficiently pled and that his attorney fees request is proper under the "tort of another" exception. Defendant's motion to strike is granted.

While

Plaintiff's complaint is not time-barred for the reasons discussed in the Court's ruling on Defendant's demurrer, the punitive damages claim is barred under Code of Civil Procedure section 425.13. Section 425.13 provides that "[i]n any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." (Code Civ. Proc., § 425.13, subd. (a).) Section 425.13 is not a part of MICRA and

applies to claims “directly related to the manner in which professional services were provided,” even if the claim is an intentional tort. (Central Pathology Service Medical Clinic, Inc. v. Superior Court (1992) 3 Cal.4th 181, 192.) An examination of the alleged nature and cause of Plaintiff’s injury reveals that section 425.13 applies here. The nature and cause of Plaintiff’s injury is “directly related” to the manner in which Defendant provided professional services because Plaintiff alleges that he has suffered “loss of vision, blurriness, irritation, displacement of the lens inserted during cataract surgery and pain and suffering” continuously since Defendant allegedly refused to provide him follow-up care on February 23, 2022. [Compl. ¶ 10.] Plaintiff admits that, as is customary post-cataract surgery, “Defendant was required to do follow up examinations on Plaintiff’s eyes.” [Id. ¶ 6.] Thus, Defendant’s refusal to provide the customary follow-up examination was an act relating to the manner of his care of Plaintiff’s eyes. Defendant’s motion to strike the prayer for punitive damages is therefore granted. Plaintiff may seek the requisite leave to amend to include this claim.

Plaintiff’s

prayer for and reference to attorney fees in paragraph 11 of his complaint is also stricken. Attorney fees are not recoverable unless provided by contract or statute. (Code Civ. Proc., § 1021). The “tort of another” exception “allows a plaintiff attorney fees if he is required to employ counsel to prosecute or defend an action against a third party because of the tort of the defendant.” (Gray v. Don Miller & Associates, Inc. (1984) 35 Cal.3d 498, 505). No statute or contract permits Plaintiff to recover attorney fees for his breach of fiduciary duty claim. The “tort of another” exception is inapplicable here because no third party is involved. The motion to strike the prayer and reference to attorney fees is thus granted without leave to amend.

Defendant

to answer the operative complaint within 10 days.

Defendant

to give notice.